

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC
HOLDINGS, LLC,**

Plaintiff,

vs.

CASE NO.:

LORI SKIPPER,

Defendant.

_____ /

COMPLAINT

Plaintiff, Colonial Manor MHC Holdings, LLC (“Colonial Manor”), sues Defendant, Lori Skipper (“Defendant” or “Skipper”), and alleges:

JURISDICTION AND VENUE

1. This is an action for damages arising from Defendant’s breach of fiduciary duty and breach of contract. This court has jurisdiction over the subject matter.

2. Defendant is *sui juris* and resides in Manatee County, Florida. As a result, this court has personal jurisdiction over Defendant.

3. Venue is proper in Manatee County, Florida. A substantial part of the events or omissions giving rise to this dispute occurred in Manatee County.

THE PARTIES

4. Colonial Manor is a Utah limited liability company authorized to do business in Florida and engaged in the real estate management of a mobile home community in Manatee County known as Colonial Manor Mobile Home Park.

5. Defendant is a former employee of Colonial Manor and is the former resident manager for Colonial Manor Mobile Home Park.

GENERAL ALLEGATIONS

6. Colonial Manor hired Defendant on or about December 4, 2020 as the resident manager of Colonial Manor Mobile Home Park.

7. Colonial Manor and Defendant entered into an Employment Agreement (“Agreement”) containing a duty of good faith, loyalty, fair dealing, and full disclosure, confidentiality agreement, and restrictive covenants, among other requirements. A true and correct copy of Colonial Manor’s Agreement with Defendant is attached hereto as **Exhibit A**.

8. In her position as resident manager, Defendant was responsible for items such as marketing, customer relations, leasing, rent collection, evictions, budgeting, rule enforcement, appearance of the park, and interacting with Colonial Manor’s residents, potential residents, vendors, and other third-parties with whom Colonial Manor maintained a business relationship.

9. As resident manager, Defendant also had access to Colonial Manor’s private and confidential business information including resident information and contact information.

10. Colonial Manor’s private and confidential business information, including resident information and contact information, derives independent economic value from not being generally known to, and not being readily ascertainable by proper means, by other persons who can obtain economic value from its disclosure or use.

11. Colonial Manor takes reasonable efforts to maintain the secrecy and confidentiality of its’ resident information and contact information, and these measures of confidentiality are important to Colonial Manor’s residents.

12. Colonial Manor's Agreement with Defendant expressly provided that Defendant shall not breach her duty of loyalty, good faith, fair dealing, or full disclosure and that she "shall not [] take any action or make any statement that is inconsistent or in conflict with his/her Employment or that would be damaging or harmful to [Colonial Manor] or its goodwill." *Exhibit A*, ¶ 1.2.

13. Further, Defendant agreed that she would not directly or indirectly disclose, communicate, or induce the communication of any confidential information to any individual learned during the course of her employment at all times during her employment and at all times thereafter. *See Exhibit A*, ¶¶ 4.1-4.9; 5.5. This necessarily included not copying or removing any documents containing confidential information and returning all confidential information and company property upon request of Colonial Manor or upon the termination of the Agreement. *See Exhibit A*, ¶¶ 4.4; 4.6.

14. The Agreement also contains restrictive covenants, including a Covenant Not to Circumvent. *See Exhibit A*, ¶ 5.5. For a period of two (2) years following the end of the Agreement, Defendant shall not:

directly or indirectly contact or contract with any Participant or other person or entity having a Relationship with Owner [Colonial Manor] or disclosed by Owner to Employee, for the purpose of taking advantage of a business opportunity that is in conflict or inconsistent with the Relationship of that person or entity with Owner, (b) otherwise circumvent, interfere with or conflict with a Relationship between Owner and another person or entity, or (c) seek to obtain or establish any rights, including but not limited to intellectual property rights, in conflict with any rights related to Owner's Intellectual Property.

Id.

15. The Agreement's prohibition against the disclosure of confidential information, duties of loyalty, good faith, fair dealing, and full disclosure, and restrictive covenants are each reasonably necessary to protect Colonial Manor's legitimate business interests. Colonial Manor

would not have employed Defendant or placed her in a position of trust with its residents, vendors, and other business relationships without these protections in place.

Defendant's Resignation and Removal of Colonial Manor Documents

16. On or about September 6, 2021, Defendant resigned from her position as resident manager of Colonial Manor Mobile Home Park.

17. On or about August 23-27, 2021, during Defendant's last weeks of employment with Colonial Manor, other Colonial Manor employees saw Defendant shredding portions of her personnel file – Colonial Manor's company property.

18. Upon information and belief, Defendant subsequently took the remainder of her personnel file with her on her last day of employment despite her obligation to return all company property upon her resignation. *See Exhibit A*, ¶ 4.6.

19. Upon information and belief, Defendant also made unauthorized copies of Colonial Manor's confidential resident list along with the residents' confidential contact information and failed to return the information upon her resignation in violation of her Agreement. *See Exhibit A*, ¶ 4.4.

Defendant's Involvement with Colonial Manor Homeowners Association, Inc.

20. Following Defendant's resignation from Colonial Manor, Defendant assisted in formally incorporating Colonial Manor Homeowners Association, Inc. ("Colonial HOA") – a homeowners' association for Colonial Manor Mobile Home Park – and was designated as the registered agent and President of the association on the October 12, 2021, filings with the Florida Division of Corporations.

21. Upon information and belief, Defendant used Colonial Manor's confidential resident information to contact Colonial Manor's residents in a manner that was not authorized or

condoned by Colonial Manor. Colonial Manor's confidential resident contact information was used in violation of Defendant's Agreement with Colonial Manor. *See Exhibit A*, ¶ 4.6.

22. Defendant used the confidential resident contact information without the consent of either Colonial Manor or the residents of Colonial Manor.

23. Multiple Colonial Manor residents contacted Colonial Manor regarding the unauthorized use of their confidential information to contact them, and lodged complaints regarding Defendant's conduct with Colonial Manor.

24. On October 12, 2021, Colonial Manor's current resident manager, Cheryl Peak, informed Defendant of the complaints that were received by Colonial Manor regarding her unauthorized and improper use of confidential resident information.

25. On October 20, 2021, Colonial Manor issued a cease-and-desist letter to Defendant advising her that she was in gross violation of the Agreement and informing her that she must cease and desist from providing any assistance to Colonial HOA or discussing with Colonial HOA or any homeowners any matter regarding the operation or management of the community. A true and correct copy of the cease-and-desist letter is attached hereto as **Exhibit B**.

26. Defendant ignored Colonial Manor's cease-and-desist letter and has continued to use her knowledge of Colonial Manor's confidential business information to Colonial Manor's detriment.

27. All conditions precedent to bringing this action have been waived or satisfied.

COUNT I: BREACH OF FIDUCIARY DUTY

28. Colonial Manor re-alleges paragraphs 1-27 above as if set forth fully herein.

29. This is an action against Defendant for breach of fiduciary duty and damages in excess of \$30,000, exclusive of attorney's fees, costs, and interest.

30. As an employee and the resident manager of Colonial Manor, Defendant owed a fiduciary duty to Colonial Manor, including a duty of loyalty, good faith, fair dealing, and full disclosure as outlined in the Agreement.

31. By and through her actions as alleged above, Defendant has breached the fiduciary duty she owed to Colonial Manor. Defendant violated her duty by, among other things, converting Colonial Manor's confidential information for her own use and for use by or on behalf of Colonial HOA.

32. As a direct and proximate result of Defendant's breach, Colonial Manor suffered damages.

WHEREFORE, Plaintiff Colonial Manor demands judgment against Defendant for damages, costs, prejudgment interest, attorney's fees, and such other relief as may be necessary and proper.

COUNT II: DECLARATORY AND INJUNCTIVE RELIEF

33. Colonial Manor re-alleges paragraphs 1-27 above as if set forth fully herein.

34. This is an action against Defendant for declaratory and injunctive relief pursuant to Florida Statutes Chapters 86 and 542.

35. By using Colonial Manor's confidential resident information and contact information, and by divulging Colonial Manor's confidential information, Defendant has intentionally and materially breached her Agreement.

36. As a former employee of Colonial Manor, Defendant has knowledge of Colonial Manor's lease agreements, resident contact information, financial status, rent rolls, and resident lists, together with other valuable and competitively sensitive confidential information concerning Colonial Manor's business.

37. Defendant is using her knowledge of Colonial Manor's confidential business information to Colonial Manor's detriment.

38. Colonial Manor has no adequate remedy at law to prohibit Defendant from further breaching her Agreement.

39. Due to Defendant's actions, Colonial Manor has been required to retain the undersigned law firm. Colonial Manor is entitled to recover its' costs and attorney's fees against Defendant pursuant to section 542.335(1)(k), Florida Statutes.

WHEREFORE, Plaintiff Colonial Manor respectfully requests that this Court:

- (a) Enter a declaratory judgment determining the validity and enforceability of the Agreement between Colonial Manor and Defendant, and Defendant's breach thereof;
- (b) Enter a temporary and final injunction which:
 - i. Prohibits Defendant from contacting Colonial Manor residents using contact information Defendant learned while employed by Colonial Manor;
 - ii. Prohibits Defendant from contacting vendors or other third-parties who were exposed to Defendant when Defendant was employed by Colonial Manor;
 - iii. Prohibits Defendant from divulging or using Colonial Manor's confidential and proprietary information; and
 - iv. Requires Defendant to return to Colonial Manor all of Colonial Manor's confidential information in her possession, including all lists of resident contact information from any computerized or handwritten database maintained by Defendant, including any backup files maintained for such database.
- (c) Enter a final judgment in favor of Colonial Manor and against Defendant for costs and attorney's fees incurred in the prosecution of this action, as provided under the Agreement and Florida Statute section 542.335(1)(k); and
- (d) Award to Colonial Manor such additional and supplemental relief which this Court may deem just and equitable.

COUNT III: BREACH OF CONTRACT

40. Colonial Manor re-alleges paragraphs 1-27 above as if set forth fully herein.

41. This is an action against Defendant for breach of contract due to her violation of the Agreement's restrictive covenants, specifically the Covenant Not to Circumvent and confidentiality agreement.

42. Defendant directly contacted or contracted with Colonial HOA, members of Colonial HOA, and the residents of Colonial Manor Mobile Home Park and circumvented and interfered with the relationship between these entities and individuals and Colonial Manor.

43. Defendant is directly in conflict with Colonial Manor and is perpetuating a conflict between Colonial Manor and its' residents due to her actions.

44. Defendant was notified that her actions were in violation of her Agreement, but she has continued to perpetuate the conflict and use her knowledge gained during her employment with Colonial Manor to interfere with the relationship between Colonial Manor and its' residents and the homeowners' association.

45. In addition, Defendant has failed to return all confidential information and Colonial Manor property in violation of her Agreement including, but not limited to, confidential resident contact information and personnel files.

WHEREFORE, Plaintiff Colonial Manor demands judgment against Defendant for damages, costs, prejudgment interest, attorney's fees, and such other relief as may be necessary and proper.

/s/ Christopher B. Lunny

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